

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 10, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Mike Luna. Also attending: Kris Jones, City Clerk.

Expression of Appreciation to the City of Cheyenne by Wyoming Main Street. Matt Ashby representing Wyoming Main Street, Chairman of the state Advisory Board, advised they are recognizing that the Cheyenne Downtown Development Authority has been designated as a 2020 accredited Main Street Program and the status is a top tier recognition. He provided information on the Main Street program including new number of businesses and employees in the state and city, volunteer hours, money raised for small businesses and communities involved in the program. He explained one reason they are recognizing the DDA is for their Covid-19 response which included over \$50,000 in relief grants provided to help keep businesses open. Mr. Ashby presented a certificate of appreciation to the City for their support of the nationally recognized Main Street approach and a certificate to DDA in recognition of their 2020 Main Street America accredited program. Mayor Orr expressed appreciation to the DDA and DDA Director Amber Ash.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Shanor recused himself from discussion and voting due to business affiliation with agenda item #14. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 27, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing for a social club liquor license application filed with the City Clerk’s Office for Alternative Arts Project Inc. d/b/a The Lincoln Theater, 1615 Central Ave., Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the item to the August 17, 2020 Finance Committee meeting.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of the intersection of Western Hills Boulevard and Yellowstone Road. Reporting for Public Services Committee, Mr. Case moved to approve on third and final reading,

seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present. (#4320)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU (Mixed-Use) to MUB (Mixed-Use Business Emphasis) for property generally located northwest of the intersection of Western Hills Boulevard and Yellowstone Road. Mr. Case moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present. (#4321)

ORDINANCE – 3rd READING – Amending Chapter 2.29, Community Service Officers, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4322)

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for non-uniformed employees of the City for Cheyenne for Fiscal Year 2020-2021. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#4323)

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2020-2021. Mr. White moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#4324)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Hawk’s Point Subdivision, a plat of a portion of the SE ¼, Section 33, T.14N, R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (located between Lincolnway and Nationway, west of Ridge Road) (Postponed from July 27, 2020). Mr. Case moved to adopt, seconded by Mr. Roybal. Mr. Case moved to amend by revised final plat map dated 7/27/2020, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#6078)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of constructing a multi-use path underpass for pedestrians and bicycles on College Drive connecting the Laramie County Community College Campus and the Sweetgrass Development (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried. (#6079)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for the BJA FY20 Edward Byrne Memorial Justice Assistance Grant (JAG) Program. Motion (per Consent Agenda) carried. (#6080)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Back 40 Subdivision, 2nd Filing, a replat Lot 1, Block 1, Back 40 Subdivision, Cheyenne, Laramie County, Wyoming (located north of West Lincolnway at Grant Avenue) (Sponsor – Mr. Case) – referred to Public Services Committee.

[CA] Preliminary Planned Unit Development (PUD) for The Enclave at Northgate, for Lot 8 and portions of Lots 6, 7, 9, 10, 11, and 12; Block 19; North Cheyenne, 2nd Filing; Cheyenne; Laramie County; Wyoming (located west of and adjacent to Yellowstone Road, north of North Gate Avenue) – referred to Public Services Committee.

[CA] Preliminary Plat for The Enclave at Northgate, for Lot 8 and portions of Lots 6, 7, 9, 10, 11, and 12; Block 19; North Cheyenne, 2nd Filing; Cheyenne; Laramie County; Wyoming (located west of and adjacent to Yellowstone Road, north of North Gate Avenue) – referred to Public Services Committee.

[CA] Memorandum of Understanding by and between Laramie County, the City of Cheyenne, the Cheyenne Board of Public Utilities, the Cheyenne/Laramie County Board of Health and the Cheyenne Regional Airport Board regarding management of the ESRI Enterprise. Motion (per Consent Agenda) carried. (#7205)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control and Animal Shelter Services (General Fund) – referred to Finance Committee.

[CA] Contract between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center (CRMC) and the Office of Youth Alternatives for Suicidal Ideation Assessment Services in the amount of \$36,791.00 (Cheyenne Regional Medical Center (CRMC) Grant) – referred to Finance Committee.

[CA] Grant Agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for Law Enforcement Assisted Diversion (LEAD) Program (Revenue to City) – referred to Finance Committee.

[CA] Grant Agreement from the U.S. Department of Transportation, Federal Aviation Administration, for the Reconstruction of Runway 09/27-Phase 2 at the Cheyenne Regional Airport/Jerry Olson Field (Revenue to City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Cheyenne Youth Alternatives, and Laramie County, Wyoming for Juvenile Probation Services (Revenue to City) – referred to Finance Committee.

[CA] Contract for on-call crisis center services between the Laramie County Community Juvenile Services Joint Powers Board and the Office of Youth Alternatives in the amount of \$69,000.00 (Revenue to City) – referred to Finance Committee.

[CA] Consideration of Bid #S-15-20 for a contract between the City of Cheyenne and Inman Roofing, Inc., for the Aquatics Center Roof Replacement project (General Fund). Motion (per Consent Agenda) carried (accepted bid from Inman Roofing, Inc., Cheyenne, in an amount not to exceed \$182,628.00). (#7206)

[CA] Consideration of Bid #S-15-20 for a contract between the City of Cheyenne and Front Range Roofing Systems, LLC, for the Fleet Maintenance Facility and Parks Maintenance Facility Roof Replacements project (General Fund). Motion (per Consent Agenda) carried (accepted bid from Front Range Roofing Systems, LLC, Greeley, CO, in an amount not to exceed \$460,020.00). (#7207)

[CA] Consideration of Bid #S-16-20 for a contract between the City of Cheyenne and Containment Systems LLC, for the repair and expansion of Landfill Permanent Litter Fence Project (Solid Waste Fund) – referred to Finance Committee.

Request to expand retail liquor license package store dimensions for Avanti, Inc. d/b/a Dell Range Liquor, 3806 Dell Range Blvd (postponed from July 27, 2020). Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to postpone to August 24, 2020, seconded by Mr. Roybal. Motion to postpone carried. Voting “yes” – all members of the governing body present.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held August 24, 2020, at 6:00 p.m. via electronic conference meeting, for a transfer of ownership for a retail liquor license application filed with the City Clerk’s Office for Old Chicago Taproom II LLC d/b/a Old Chicago #74, 1734 Meadowland Drive, Cheyenne, Wyoming (license currently held by Wadsworth Old Chicago Inc. d/b/a Old Chicago Restaurant).

Under other business:

Mr. Laybourn expressed appreciation for extra effort at a recent Cheyenne Symphony Orchestra performance at the Civic Center by City staff and partners of the Cheyenne Symphony Orchestra.

Mr. Laybourn followed up on Downtown Development Authority budgetary concerns that were discussed during the last city council meeting. He expressed concern with cancelling the

façade improvement program and the DDA's intent to leverage the reserve account for investments and developing projects. Mr. Laybourn requested the City Council president to schedule a work session and also for the DDA to hold a public meeting to inform citizens about their visions and intent for the program.

Mayor Orr advised a ribbon cutting ceremony for the new courthouse building will be scheduled in the next few weeks. She provided information on the first court date to be held in the new building and expressed appreciation to staff working on the project.

Mayor Orr congratulated Cheyenne Legion Post 6 baseball for winning state title and expressed appreciation to Community Recreation & Events staff for opening and maintaining the baseball fields.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:23 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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